

As to the 3rd, 4th, 5th, 6th and 7th Causes of Action, Demurrer SUSTAINED for failure to state facts sufficient to constitute a cause of action, with leave to amend.

Plaintiff to file amended complaint in 10 days.

Case Management Conference continued to 8.06.26. Parties are not ordered to file updated case management statements prior to the next hearing date.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2507057	GUILLAUME VS CITY OF CATHEDRAL CITY	MOTION TO STRIKE COMPLAINT OF RONDA GUILLAUME BY CITY OF CATHEDRAL CITY

Tentative Ruling: The court may strike any irrelevant, false, or improper matter inserted in any pleading; or, strike all or any part of any pleading not drawn or filed in conformity with the laws of this state. (Code Civ. Proc., § 436.)

Motions to strike can be used to attack the entire pleading, or any part thereof. (Code Civ. Proc., § 435; *Warren v. Atchison, T. & S.F. Ry. Co.* (1971) 19 Cal.App.3d 24, 40.) As with demurrers, the grounds for a motion to strike must appear on the face of the pleading under attack, or from matter which the court may judicially notice. (Code Civ. Proc., § 437(a).) “[T]he court treats as true the material facts alleged in the complaint, as well as any facts which may be implied or inferred from those expressly alleged.” (*Washington Int’l Ins. Co. v. Superior Court* (1998) 62 Cal.App.4th 981, 984, fn. 2.)

A motion to strike is the proper vehicle to attack a claim for punitive damages. (Code Civ. Proc., §§ 435-436; *Turman v. Turning Point of Central Calif., Inc.* (2010) 191 Cal.App.4th 53, 63.) Here, Defendant City moves to strike punitive damages against itself, citing Gov. Code §818 that a public entity is not liable for punitive damages. Plaintiff concedes this point in her opposition.

Motion to Strike GRANTED with leave to amend.

Plaintiff to file amended complaint within 10 days.

Case Management Conference continued to 8.06.26. Parties are not ordered to file updated case management statements prior to the next hearing date.

8.

CASE #	CASE NAME	HEARING NAME
CVPS2509063	VEASEY VS SRACSO	MOTION FOR PROTECTIVE ORDER BY SRACSO, DAN GORE, MIKE TERMINI

Tentative Ruling: No tentative ruling. Hearing is continued to 7.15.26.

Each protective-order statute requires that the motion be “accompanied by a meet and confer declaration under Section 2016.040.” (CCP §§ 2030.090(a); 2031.060(a); 2033.080(a).) Section 2016.040, in turn, requires that the declaration state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion. (CCP §

2016.040(a).) Here, the declaration by attorney Horwitz indicating a letter was sent to Plaintiff's counsel is an insufficient attempt to meet and confer.

After meeting and conferring, moving party shall, at least 10 days before the continued hearing date, do one of the following:

- (1) Vacate the hearing on the motion; or
- (2) File with the Court a joint declaration of all counsel/parties stating the means by which the parties met and conferred and identifying the specific outstanding disputes that the parties have not resolved. The declaration should include a brief description of (i) each issue or issues to be resolved and (ii) the parties' respective positions regarding each issue. Each issue should be described in a single paragraph, and each party's position should be described in no more than two paragraphs per issue.
- (3) File with the Court a sworn declaration as to efforts made to contact the Plaintiff to complete meet and confer, if Plaintiff refuses to respond or cooperate.

The court will not accept further briefing.

The parties' failure to engage in a good faith meet and confer process or failure to file a joint declaration as ordered will result in sanctions under Code of Civil Procedure section 177.5.